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Case Number: 23STCV27927 Hearing Date: June 30, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

PARVANEH SAFAEI,

Plaintiff,

v.

THE BOEING CO., et al.

Defendants.

Case No: 23STCV27927

Hearing Date: June 30, 2026

Calendar

Number: 3

Defendant The Boeing Co. moves for a protective order imposing certain restrictions on depositions noticed by Plaintiff Parvaneh Safaei. The defendant also moves for sanctions of \$30,000 against the plaintiff's counsel based on

the latter's conduct during prior depositions.

Code of Civil Procedure section 2025.420,
subdivision (g) states: "If the motion

for a protective order is denied in whole or in
part, the court may order that the deponent provide or permit the discovery
against which protection was sought on those terms and conditions that are
just."

Pursuant to that statute, the
motion is GRANTED IN PART and DENIED IN PART as follows.

The request for a protective order
requiring both parties' counsel to turn on their cameras while questioning
witnesses during video depositions is GRANTED.

The Court also orders counsel for both parties to act
civilly during depositions, to avoid and/or keep repeated questions to a
reasonable minimum, and to refrain from inquiring into matters outside the
scope of their clients' respective deposition notices.

The motion is otherwise DENIED.

Background

This is an employment discrimination case.

The
Complaint alleges that, while working for Defendant The Boeing Co. ("Boeing")
as a software engineer, Plaintiff Parvaneh Safaei ("Plaintiff") was diagnosed
with cancer and underwent surgeries that left her with physical limitations.
After she returned to work, her supervisor for years was replaced by Defendant Benjamin
Canfield ("Canfield"), who repeatedly discriminated, harassed, and retaliated
against her because of her limitations, requests for reasonable accommodations,
Iranian national origin, age, and/or taking care of her elderly, disabled
mother. Canfield subsequently terminated Plaintiff under false accusations of
timecard fraud.

On

November 14, 2023, Plaintiff filed this action against Boeing, Canfield, and Does 1 through 100, inclusive, asserting causes of action for: (1) discrimination based on actual or perceived disabilities and/or serious medical condition; (2) discrimination based on actual or perceived associational disabilities; (3) failure to engage; (4) failure to accommodate; (5) discrimination based on national origin; (6) discrimination based on age; (7) retaliation based on actual or perceived participation in protected activities; (8) harassment and/or hostile work environment; and (9) failure to prevent.

On

April 27, 2026, Plaintiff filed a motion to compel one of Boeing's Person Most Qualified ("PMQ"), Sue Ellen Wallace, to appear for the "second volume" of her deposition. Boeing opposed the motion.

On

May 7, 2026, Boeing filed the instant Motion for Protective Order.

On June 16, 2026, the Court denied

Plaintiff's motion to compel, finding that: (1) contrary to Plaintiff's argument, the Civil Discovery Act allows Boeing to move for protective order before, during, or after a deposition; and (2) it was unnecessary to grant Plaintiff's request to compel the PMQ deposition at the time because the Court will still need to rule on Boeing's motion for a protective order against the deposition.

Plaintiff

filed her opposition to Boeing's motion on June 16, 2026.

On

June 30, 2026, Boeing filed its reply.

Jury

trial is set for March 22, 2027.

Legal Standard

"Before,

during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., §§ 2025.210, subd. (b); 2016.040 ["A meet and

confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion”].)

“The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420, subd.

(b).) “This protective order may include, but is not limited to, one or more of the following directions: ¶ (1) That the deposition not be taken at all. ¶ ¶ ¶ ¶ (5) That the deposition be taken only on certain specified terms and conditions. ¶ ¶ ¶ (8) That the testimony be recorded in a manner different from that specified in the deposition notice. ¶ (9) That certain matters not be inquired into. ¶ (10) That the scope of the examination be limited to certain matters.”

(Ibid.)

Discussion

Boeing moves for a protective order imposing the following restrictions on Plaintiff’s depositions of defense witnesses: (1) prohibit Plaintiff from continuing PMK depositions of witnesses who have already been deposed, and from taking PMK depositions on topics already covered; (2) require opposing counsel to activate his camera during questioning at remote depositions; and (3) require counsel to provide the deponent with full, usable copies of all exhibits used during questioning. (Notice of Motion, p. 3:8-26.) Boeing also moves for an order appointing a discovery referee and imposing sanctions of \$30,000 “against Plaintiff’s counsel, including attorneys’ fees and the cost of a discovery referee.” (Id. at pp. 4:27-4:9.)

The Court finds that Boeing has satisfied the meet and confer requirement for this motion. (Declaration of Melanie Renken, filed May 7, 2026 (“Renken Decl.”), ¶¶ 12-25.)

A.

Plaintiff’s Request to Prohibit Additional PMK Depositions and Deposition of Topics Already Covered

According to defense counsel, Boeing has produced to date three PMQs for depositions, Matt Wilson (“Wilson”), Sue Wallace (“Wallace”), and Kathryn Lewis (“Lewis”), and each PMQ was designated

to testify on different topics from the others.

Boeing has produced Wilson for Volume I and II depositions, but has refused to produce Wallace and Lewis for the second volume of their depositions until the Court rules on this motion.

(Renken Decl., ¶¶ 5-7, 10, 20, 21, 24.)

Boeing argues that the Court should prohibit Plaintiff from taking additional PMQ depositions for three reasons. (Motion, pp. 15:19-17:7 [providing the reasons].) First, Plaintiff's counsel spent hours revisiting topics previously covered, and the duplication extended across witnesses. Second, Plaintiff's counsel spent an inordinate amount of time questioning PMQ witnesses outside the scope of the topics in the deposition notices. Third, additional PMQ depositions would only serve to harass Boeing and its witnesses.

1.

Accusation of Revisiting Topics Previously Covered

Boeing argues that during Wilson's deposition, Plaintiff's counsel duplicated several topics. The Court evaluates each of those allegations, in turn as shown in the table below.

Topics

Allegedly Duplicated

Wilson Vol. I

(Renken Decl., Exh. C, begins on page 207 of the PDF) Transcript Citations

Wilson Vol. II

(Renken Decl., Exh. N, begins on page 623 of the PDF)

Transcript

Citations

The Court's Findings

Investigator qualifications

82:15-91:7

381:24-383:10

The Court disagrees that Vol. II questioning on this topic was unnecessary. As Plaintiff's counsel explained the cited portion of Vol. II, Wilson referred counsel to job descriptions but in Vol. II the deponent went into more details regarding qualifications.

Investigations identified as "potentially significant" (and whether Plaintiff's investigation was identified as such)

124:24-145:8; 175:4-

177:21

339:5-349:10

Plaintiff has also failed to show Vol. II questioning was unnecessary for this topic. The Vol. II questioning at issue mainly focused on a document that, during Vol. I, Plaintiff's counsel claimed (and defense counsel did not dispute) had not been produced. The document was allegedly produced before Vol. II deposition.

Plaintiff's knowledge of the evidence and purpose of the investigation

159:8-166:6

427:16-431:9

The Court finds that Plaintiff's counsel repeated some questions in Vol. II that he had already asked in Vol. I. Specifically, questions regarding (a) whether the relevant investigator

would have told Plaintiff the “precise accusations” that were being made against her and gave her the opportunity to respond, and (b) if the best practice would be for an investigator to tell the accused what the specific accusations are.

However, the portion of the Vol.

II transcript that Boeing has highlighted also went into more details that were not covered in Vol. I. Specifically, in Vol. II, Plaintiff’s counsel asked Wilson whether he had reviewed records that suggested the relevant investigator informed Plaintiff of what she is being investigated of.

Therefore, while it was improper for counsel to repeat questions already asked and answered on that topic, Boeing has not shown that Vol. II was unnecessary.

Quality review

94:10-96:10, 185:12-

189:4

377:8-378:7

The Court finds that Plaintiff’s counsel repeated in Vol. II a Vol. I question regarding Boeing’s quality review. Specifically, counsel asked Wilson to testify define once again what a quality review was.

However, the line of questioning that followed shows that counsel was seeking clarification regarding Wilson’s testimony regarding that topic.

Therefore, Plaintiff has not shown the quality review topic in Vol. II was unnecessary.

Credibility assessments

110:22-115:8; 116:7-16

414:16-418:3

The Court does not find the questioning in Vol. II was a duplicate of the questions asked in Vol. I. While both Plaintiff's counsel asked Wilson regarding credibility assessments in both depositions, Vol. II deposition concerned whether the investigator at issue could determine the credibility of witnesses through phone investigations. In the portion of the Vol. I transcript that Plaintiff has cited, Plaintiff's counsel did not ask Wilson regarding credibility assessments during phone investigations.

Issue Review Team, April Newman, Leslie Peterson, and Cathy Jeffress

216:4-19; 231:14-232:4

506:13-507:5; 509:3-21

The Court finds that Plaintiff's counsel asked Wilson in Vol. I and II the same questions: who is April Newman and Leslie Peterson and what were their roles. However, during Vol. II, after Wilson protested that counsel had already asked him a repeated question regarding Leslie Peterson, counsel acknowledged, stating: "Yeah, I know. I - - she's listed here. I'm just curious why." (Vol. II, p. 508:3-4.)

Boeing also argues that the duplication extended across witnesses because Plaintiff's counsel questioned both Wilson and Wallace about Boeing's "PRO-784 reasonable accommodation process" and investigator training, topics that were designated for different PMQ witnesses. (Motion, p. 15:26-28.)

However, Boeing has not cited which part of Wilson's transcripts it is referring to. Therefore, the Court disregards that argument as to Wilson.

As for the PRO-784 argument regarding Wallace, Boeing contradicts itself, stating that Wallace was designated to testify regarding PRO-784. (Motion, p. 12:5-11.)

With regard to the accusation that Plaintiff's counsel questioned Wallace on investigator training, the Court disagrees with Boeing. Plaintiff's counsel asked the PMQ a question that was within the purview of topics in the PMQ's Volume I deposition notice. (See Renken Decl., ¶

7; Exh. D – a

copy of the Wallace Vol. I Deposition Notice, pp. 1:25-2:19 [seeking to depose Wallace on the following topics: “(1) the essential and marginal duties of Plaintiff’s job during the five year period preceding the termination of Plaintiff’s employment; ¶ (2) every occasion defendant came upon information indicating Plaintiff’s need for reasonable accommodations during Plaintiff’s employment; ¶ (3) every time defendant engaged Plaintiff’s in the interactive process to identify all available reasonable accommodations during Plaintiff’s employment; ¶ (4) every accommodation considered for, offered to and/or furnished to Plaintiff during plaintiff’s employment; and (5) every policy and procedure defendant had in place during Plaintiff’s employment for engaging disabled employees in the interactive process and offering available reasonable accommodations” (capitalized letters removed)]; see also Motion, p. 12:16, citing Exh. E – a copy of the Vol. I Wallace deposition transcript, p. 93:19-94:2 [asking Wallace a question within those topics she was designated: “Q Okay. Were the generalists, the HR generalists at Boeing to your knowledge trained on California requirements regarding the accommodations of disabled employees? ¶ A MR. LOVELL: Calls for speculation, outside the scope. ¶ Q BY MR. BAKHTIAR: You can answer. ¶ A I don’t have access to what the training requirements are for HR generalists in California”].))

In all, the Court finds that Plaintiff’s counsel did not engage in the kind of extreme duplication suggested by Boeing.

2.

Accusation of Spending an Inordinate Amount of Time

Questioning on Matters Outside the Scope of Topics in Deposition Notices

Boeing argues that Plaintiff’s counsel spent “substantial time questioning PMK witnesses about topics outside the scope of their notices. For example, Wilson was questioned about Boeing’s disciplinary process and reasonable accommodations—neither of which was included in his investigation-focused PMK notice. (Wilson Vol. I, 233:4–237:22; Wilson Vol. II, 485:11–17[.]) Wallace was asked to interpret California disability law and opine on Boeing’s compliance with the Fair Employment and Housing Act [“FEHA”]—subjects well outside her accommodations designation. (Wallace Dep. 87:13–88:8; 100:17–102:18; 130:9–137:24.) Lewis was questioned about control account managers and their job responsibilities, which had nothing to do with her termination and performance management designation.

(Lewis Dep. 104:19–108:15.) Each hour spent on out-of scope questioning was an hour unavailable for the noticed topics—and is now cited by Plaintiff as a basis for additional deposition time.” (Motion, p. 16:5-15.)

The Court has reviewed the cited portions of the deposition transcripts.

The Court disagrees with Boeing that Wilson was improperly questioned regarding Boeing’s disciplinary process and reasonable accommodations. The line of questioning fell within the “investigation-focused PMK notice.” (Renken Decl., Exhs. B, G – copies of Vol. I & II Deposition Notices of Wilson.)

The Court agrees with Boeing that it was improper for Plaintiff’s counsel to keep asking Wallace questions regarding Boeing’s interpretation of FEHA statutes. That line of questioning requested legal conclusions from the witness, which was not only improper but unnecessary, as Plaintiff can propound requests for admissions instead. (Renken Decl., Exh. D – a copy of Wallace’s Vol. I Deposition Notice; Exh. E – copy of the Wallace deposition transcript.)

The Court also agrees with Boeing that, during Volume I deposition of PMQ Lewis, it was improper for Plaintiff’s counsel to keep questioning the PMQ regarding Boeing’s control account managers’ duties, as that was outside the scope of the deposition notice. (See Renken Decl., ¶ 11 [testifying that Lewis was designated to testify regarding the following topics: “(1) the termination of Plaintiff’s employment, including each and every reason for the termination; (2) every person who participated in and/or was involved in the decision to terminate Plaintiff’s employment; and (3) every performance management policy and procedure Defendant had in effect during the ten-year period preceding the termination of Plaintiff’s employment, including Defendant’s disciplinary policies and procedures and termination policies and procedures”]; id. at Exh. I – a copy of the Lewis Vol. I Deposition Notice.) In her opposition, Plaintiff does not explain why she deposed the PMQ on that topic.

3.

Accusation that Additional Depositions Will Only Harass Boeing and Its Witnesses

Boeing argues that the Court should enter a protective order prohibiting additional PMQ depositions and restricting Plaintiff from taking PMQ depositions on topics already covered for the reasons discussed above.

The defendant also argues: "Plaintiff had ample opportunity during the nearly seven hours spent questioning each witness to explore the noticed categories. Instead, Plaintiff chose to waste substantial time on unnoticed topics, legal quizzes, and argument. Having squandered that time, Plaintiff should not be permitted to subject Boeing's witnesses to additional depositions to cover the same ground. The Court should therefore prohibit further PMK depositions of witnesses who have already testified and bar additional depositions on topics already covered." (Motion, pp. 16:24-17:3 [footnote removed].)

However, as Plaintiff argues in its opposition, "[g]enerally, a deponent seeking a protective order will be required to show that the burden, expense, or intrusiveness involved in the videotaped deposition clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Emerson Electric Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110; Opposition, pp. 13:26-14:3.)

Here, Boeing has not shown that Plaintiff's counsel's conduct during PMQ depositions outweighs the likelihood that Plaintiff will obtain admissible evidence. Indeed, in its motion, Boeing concedes that the seven-hour limitation on deposition testimony in Code of Civil Procedure section 2025.290, subdivision (a) does not apply to employment cases. (Motion, p. 16, fn. 10.)

Therefore, Boeing's request for an order prohibiting Plaintiff from taking additional PMQ depositions and preventing Plaintiff's counsel from asking questions regarding topics previously noticed is DENIED. Instead, the Court shall enter an order requiring both parties' counsel to act civilly during the depositions, avoid and/or keep repeated questions at a reasonable minimum, and refrain from inquiring into matters outside the scope of their respective deposition notices.

B.
Request for an Order Requiring Opposing Counsel to

Activate His Camera During Remote, Video Depositions

Boeing also moves for a protective order requiring opposing counsel to activate his camera during questioning at remote depositions, arguing that Code of Civil Procedure section 2025.420, subdivision (h) protects witnesses from unwarranted annoyance, embarrassment, or oppression. (Motion, p. 17:9-14.) Boeing further argues that if Plaintiff's counsel does not want to be on camera, California Rules of Court, rule 3.1010(a) permits telephone depositions. (Id. at p. 17:15-16.)

In opposition, Plaintiff argues that there is no law requiring counsel to be on camera. (Opposition, p. 15:7-18 [arguing that in *Agnone v. Agnone* (2025) 111 Cal.App.5th 758, 766-767, the California Court of Appeal affirmed a trial court's order imposing nearly \$10,000 in sanctions against a defense attorney that refused to turn on his camera while seating in the same room as the witness preventing the deposing attorney from being able to see whether the defense attorney was coaching the deponent. Plaintiff argues case is inapplicable here because the questioning attorney is the one off camera].)

The Court finds that to the extent Plaintiff asked the witnesses to appear on a Zoom or other video deposition, her counsel should be prepared to also appear on camera. It is a matter of professional courtesy to the witnesses, court reporter, and opposing party. Otherwise, the depositions can take place through phone.

Therefore, Boeing's request for a protective order requiring counsel to turn on their cameras during video depositions is GRANTED. In so ruling, the Court is not preventing the parties stipulating otherwise in future depositions.

C.

Request for an Order Requiring Counsel to Provide the Deponent With Full, Usable Copies of All Exhibits Used During Questioning

Boeing also argues: "Mr. Bakhtiar insists on questioning witnesses about multi-page documents while sharing only a narrow, zoomed-in portion of a document. (Wilson Vol. II, 295:22-24; 317:25-319:17). In response to defense counsel's objections and request that Wilson be provided with the full documents about which he was being questioned, Mr. Bakhtiar threatened to require Wilson to travel from his

home in St. Louis, Missouri to California if he wanted to see the exhibits in their entirety.” (Motion, pp. 17:21-18:4.) “A witness cannot fairly testify about a document they cannot see in full.” (Id. at p. 18:6-7.)

In opposition, Plaintiff argues that screen-sharing of exhibits during remote deposition is standard practice and there is no law supporting Boeing’s request. (Opposition, p. 17:5-10.) In addition, that “[t]he Court should not issue an order dictating the logistics of a remote deposition when the parties have shown they can handle them cooperatively.” (Id. at p. 17:14-15.) In this case, “[t]he Wilson Volume II transcript shows that defense counsel and Plaintiff’s counsel actively addressed exhibit-handling on the record, including Ms. Renken’s own suggestion that Plaintiff’s counsel share the HAIL report (Wilson Vol. II, 295:22–24) and her offer to email a document to the witness (Wilson Vol. II, 318:7–9, 319:14–17).” (Id. at p. 17:10-13.)

The Court DENIES Boeing’s request. Without knowing how voluminous each exhibit will be, issuing a blanket order requiring sharing the full pages of the exhibits may only work to delay the depositions. The parties’ counsel may continue screen-sharing relevant portions of exhibits as long as the witnesses are given the opportunity to review the entire document upon request from the witness or opposing counsel. Counsel can continue to discuss on record how to share exhibits during depositions.

D. Request for discovery referee

Code of Civil Procedure section

639 (“Section 639”) states: “When the parties do not consent [to the appointment of a referee], the court may, upon ... its own motion, appoint a referee in the following cases pursuant to the provisions of subdivision (b) of Section 640: ¶ ¶ ¶ ¶ ¶ (5)

When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.” (Code Civ. Proc., § 639, subd. (a).)

However, as Plaintiff argues, Section 639 requires the referee appointment to be based on “exceptional circumstances.” (See Code Civ. Proc., § 639, subd. (a)(2) [“When

the referee is appointed pursuant to paragraph (5) of subdivision (a) [i.e., for discovery purposes], [the court shall indicate in its written order appointing the referee] the exceptional circumstances requiring the reference, which must be specific to the circumstances of the particular case"]; Cal. Rules of Court, rule 3.920, subd. (c) ["A discovery referee must not be appointed under Code of Civil Procedure section 639(a)(5) unless the exceptional circumstances of the particular case require the appointment"].)

No California case has defined what Section 639 means by "exceptional circumstances."

The California Court of Appeal has suggested, however, that simplistic cases involving "run-of-the-mill" (i.e., ordinary) discovery disputes do not constitute exceptional circumstances. (See *Hood v. Superior Court* (1999) 72 Cal.App.4th 446, 449, fn. 4 ["Moreover, the order made in this case purports to refer 'any and all' future discovery disputes to the appointed referee. Whatever merit there may be to the notion of a reference of all discovery disputes in a complex case with a history of nasty nit-picking and name-calling, there is nothing about this case to justify its placement in that category. It is one thing to refer out a particularly complex discovery dispute that appears to involve an extraordinary expenditure of judicial time. It is quite another to refer out all discovery, however simplistic, in a routine tort action such as this—where there appears to be no legitimate reason for the court to refuse to hear and decide run-of-the-mill discovery motions"]; see also *Taggares v. Superior Court* (1998) 62 Cal.App.4th 94, 104 [noting that "there is no suggestion the Legislature intended [the court's] powers [under Section 639] to be used over the parties' objection in routine, pro forma, uncomplicated matters simply for expediency or a distaste for discovery resolution"].)

Boeing has not shown exceptional circumstances here.

Therefore, the request to appoint a referee is DENIED.

E.
Request for monetary sanctions of \$30,000 against
Plaintiff's counsel

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.420, subd. (h).)

The Court finds that Plaintiff's counsel acted with substantial justification in opposing the instant motion. Indeed, the Court has rejected most of Boeing's characterization of counsel's conduct during the depositions at issue.

Therefore, the request for monetary sanctions of \$30,000 against Plaintiff's counsel is DENIED.